25SMCV06490 25SMCV06490

County: los-angeles

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Case Number: 25SMCV06490 Hearing Date: July 30, 2026 Dept: P

Tentative

Ruling

A To A

Properties LLC v. CMJ Recovery NV, LLC, et al., Case No. 25SMCV06490

Plaintiff's

Motion for Writ of Attachment

Hearing

Date: July 30, 2026

Background

Plaintiff A
to A Properties LLC ("A to A") sues defendants CMJ Recovery NV, LLC; Joel Strulovics; and CMJ Healthcare Holdings, LLC (collectively, "CMJ") for breach of guaranty, fraud, and negligent misrepresentation related to a guaranty defendants executed for Plaintiff's tenants' lease obligations at 21965 Saddle Peak Road, Topanga, CA.

On May 1,
2026, A to A filed this Motion for Right to Attach Order and Issuance of Writ of Attachment. On July 22, 2026, CMJ filed opposition. On July 24, 2026, A to A filed its reply.

Arguments

A to A moves for a right to attach order under its November 24, 2023, guaranty agreement with CMJ to guarantee A to A Properties' tenant's rent. A to A seeks attachment of all of CMJ's property, as set forth in Exhibit 1. (Id. at p. 11.) A to A argues that this matter is a claim upon which attachment may issue. (Id. at p. 6.) A to A argues that there is no dispute as to the validity or force of the Guaranty agreement. A to A argues that since the tenant vacated the premises on January 3, 2025, and has not paid rent since then, there is a material breach of the lease for which CMJ is liable as guarantor. (Id. at p. 9.) A to A argues that the attachment is not sought for an improper purpose and that the amount to be secured is $549,880.06, consisting of $497,880.86 in unpaid rent and charges, $2,000 in estimated recoverable costs, and $50,000.00 in estimated allowable attorneys' fees recoverable under the guaranty. (Id. at p. 10.)

In opposition, CMJ argues that A to A has not established the probable validity of its claim against CMJ. CMJ argues that it has substantial defenses that preclude a finding that A to A is more likely than not to obtain judgment on its claims, including A to A's failure to mitigate damages after the tenant vacated the property. (Opposition, p. 2.) CMJ also argues that A to A has not established the amount to be secured because the amount they propose includes attorneys fees and speculative future damages. (Ibid.)

In reply, A to A argues that attachment is not the harsh remedy CMJ makes it out to be. (Reply, p. 2.) A to A argues that it is more likely than not that A to A will obtain judgment on its claim because CMJ does not contest any of the elements of A to A's breach of guaranty claim. (Ibid.) A to A argues that the damages amount does not need to be certain, merely ascertainable from the face of the contract and that the estimated attorneys' fees are recoverable because the code calls for an estimate. (Id at pp. 4-5.) A to A argues that CMJ's unclean hands argument is actually a failure to mitigate argument that does not defeat this motion. (Id. at p. 6.)

Governing Law- Motion for Right to Attach Order and Writ of Attachment

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (CCP § 484.010.)

The application shall be executed under oath and must include:

a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued;

a statement of the amount to be secured by the attachment;

a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based;

a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and

a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment.

(CCP § 484.020.)

A specific description of the property at issue is generally required only where the defendant is an individual because corporations and partnerships generally have no exempt property. (See Code Civ. Proc. § 487.010, 487.020.)

“The application [for a writ of attachment] shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.) Statutory attachment procedures are purely creations of the legislature and as such “are subject to ‘strict construction.’” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 79 [citing Vershbow v. Reiner (1991) 231 Cal.App.3d 879, 882]; see also Nakasone v. Randall (1982) 129 Cal.App.3d 757, 761.) A judge does not have authority to order any attachment that is not provided for by the attachment statutes. (Jordan-Lyon Productions, Ltd. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1466.) “The declarations in the moving papers must contain evidentiary facts, stated ‘with particularity,’ and based on actual personal knowledge with all documentary evidence properly identified and authenticated.” (Hobbs, supra, 73 Cal.App.4th at p. 79–80 [citing CCP § 482.040].) “In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of¿the probable outcome of the litigation.” (Hobbs, supra, 73 Cal.App.4th at p. 80 [ellipses and quotation marks omitted].)

The Court shall issue a right to attach order if the Court finds all of the following:

The claim upon which the attachment is based is one upon which an attachment may be issued.

The plaintiff has established the probable validity of the claim upon which the attachment is based.

The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

The amount to be secured by the attachment is greater than zero.

(Code Civ. Proc. § 484.090.)

Analysis

Procedure

CMJ's

opposition was due July 17, nine court days before the July 30 hearing on this motion. CMJ submitted its opposition on July 22, only six court days before the hearing. Though untimely, the Court will consider CMJ's opposition.

Right

to attach order

a.

Claim

upon which an attachment may be issued

CMJ does

not dispute that a guaranty action is a claim upon which an attachment may be issued. The Court finds that this is a claim upon which an attachment may be issued.

b.

Probable

validity of the claim

A to A

bases this motion on its claim for breach of guaranty. A claim has probable validity where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (Code Civ. Proc. § 481.190.)

CMJ does

not dispute that A to A is likely to prevail on the breach of guaranty claim. Instead, CMJ argues that its affirmative defenses mean that A to A cannot establish the probable validity of its claim. CMJ contends that the guaranty's waiver of defenses does not extend to equitable defenses, like unclean hands and failure to mitigate damages. (Opposition, pp. 4-5.) The Court agrees. "[A] guarantor's waiver of defenses is limited to legal and statutory defenses expressly set out in the agreement. A waiver of statutory defenses is not deemed to waive all defenses, especially equitable defenses, such as unclean hands, where to enforce the guaranty would allow a lender to profit by its own fraudulent conduct." (California Bank & Trust v. DelPonti (2014) 232 Cal.App.4th 162, 167.)

Here, the guaranty does not explicitly or implicitly waive CMJ's equitable defenses. (See FAC, Exhibit 1.) The guaranty therefore does not waive equitable defenses, including unclean hands.

An unclean hands affirmative defense applies where there is a showing of analogous case law, the nature of the misconduct, and the relationship of the misconduct to the claimed injuries. (Kendall-Jackson Winery, Ltd. v. Superior Court (1999) 76 Cal.App.4th 970, 979.) Case law provides that if the defendant produces sufficient evidence of the plaintiff's unclean hands, the Court may find that the plaintiff's claims are not likely to succeed. (See California Bank & Trust v. DelPonti 232 Cal.App.4th at 168 [finding that "public policy requires us to read Civil Code section 2856 in a manner that prevents one party from capitalizing upon its own fraud or willful misconduct. As the trial court pointed out, it would be in violation of public policy to enforce the Guarantors' waivers of defenses to payment of the note where the Bank willfully breached the loan agreement, causing the default."].) However, CMJ has not identified any cases suggesting that a failure to mitigate constitutes the sort of misconduct that would support an unclean hands affirmative defense.

As such, the Court finds that A to A properties has established the probable validity of their claim for breach of guaranty.

CMJ next contends that A to A has not established its damages.

"'It is a well-recognized rule of law in this state that an attachment will lie upon a cause of action for damages for a breach of contract where the damages are readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite." (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540, citing Lewis v. Steifel (1950) 98 Cal.App.2d 648,650.) Here, A to A's damages are readily ascertainable by reference to the contract and the basis of the computation of damages is reasonable and definite.

Finally,

CMJ contends that A to A failed to mitigate its damages and therefore the claimed amount of $549,880.06 is overstated. In support of its mitigation argument, CMJ submits evidence that the tenant notified A to A when it vacated the property on January 3, 2025, and that none of CMJ actions prevented A to A from re-leasing or selling the property. (Strulovics Decl., ¶¶ 7-10.) CMJ also submits evidence that when A to A re-listed the property for rent, it listed the property for $4.69 million on July 26, 2025, when the property last sold for $3.89 million on April 8, 2024. (Ruocco Decl., Exhibit A.) That amounts to a 20% increase in value in just fifteen months. Ultimately, while appears as though there may be some merit to CMJ's affirmative defense for failure to mitigate damages, the fact that CMJ may have a viable affirmative defense which may reduce the amount of total damages is not grounds for denying A to A's motion. (See Lewis v. Steifel, supra, 98 Cal.App.2d at 650.)

The
guaranty provides for the recovery of the amount of rent requested, interest on unpaid rent, and attorneys' fees. (Esmailzadeh Decl., ¶ 4.) Estimated attorneys' fees may also be included in an application for a writ of attachment under Code Civ. Proc. § 482.110. The rent requested and interest on unpaid rent are ascertainable from the contract. However, the estimated attorneys' fees requested are not, nor is there any justification for the number A to A provided. A to A does not provide any evidence showing how it arrived at the $50,000 number. (See Esmailzadeh Decl., ¶ 18 [attorneys' fees based only on the declarant's hearsay conversation with his attorney.].) Since A to A has not submitted evidence support its attorneys' fees estimate, the Court finds that the $50,000 in fees should not be included in the right to attach order.

c.
Attachment
is not sought for purposes other than recovery on the claim on which attachment is based.

CMJ does
not dispute that A to A seeks attachment for the purpose of recovering on their breach of guaranty claim.

d.
The
amount sought is greater than zero.

CMJ does
not dispute that A to A seeks attachment in an amount greater than zero.

Conclusion

A to A
Properties' Motion for Writ of Attachment is GRANTED in the amount of
$499,880.06.